

Terms of Service for KINEVATE SPATIALYST INC.

Effective Date: July 27, 2026

These Terms of Service ("Terms") govern your access to and use of the website located at <https://ceokinevatespatialyst26-source.github.io/kinevate-spatialyst/> (the "Site") operated by KINEVATE SPATIALYST INC. ("KINEVATE," "we," "us," or "our"), an Indiana-based company specializing in spatial computing, hardware-software integration, and quad-modal sensor fusion. By accessing or using the Site, you agree to be bound by these Terms. If you disagree with any part of the terms, then you may not access the Site.

1. Use of the Site

- **Eligibility:** By using the Site, you represent that you are at least 18 years old and are legally capable of entering into a binding agreement.
- **Permitted Use:** You agree to use the Site only for lawful purposes and in a way that does not infringe the rights of, restrict, or inhibit anyone else's use and enjoyment of the Site. Prohibited behavior includes harassing or causing distress or inconvenience to any other user, transmitting obscene or offensive content, or disrupting the normal flow of dialogue within the Site.
- **Inquiry Forms:** The inquiry forms on the Site are for legitimate business inquiries only. Submitting false, misleading, or fraudulent information is prohibited.

2. Intellectual Property

- **Ownership:** The Site and its original content, features, and functionality are and will remain the exclusive property of KINEVATE SPATIALYST INC. and its licensors. The Site is protected by copyright, trademark, and other laws of both the United States and foreign countries.
- **Trademarks:** KINEVATE's trademarks and trade dress may not be used in connection with any product or service without the prior written consent of KINEVATE.
- **User Submissions:** Any content, ideas, or information you submit through the Site (e.g., via inquiry forms) will be treated as non-confidential and non-proprietary. By submitting such information, you grant KINEVATE a worldwide, royalty-free, perpetual, irrevocable, and sublicensable right to use, reproduce, modify, adapt, publish, translate, create derivative works from, distribute, and display such content in any media.

- **AI-Assisted Content:** While AI agents may assist in our internal product development, all intellectual property displayed on this Site, including text, graphics, logos, images, and software, is the result of significant human authorship and creative direction. KINEVATE asserts its intellectual property rights over such content in accordance with U.S. Copyright Office and USPTO guidance [3](#) [4](#) .

3. Future Products and Services

KINEVATE is developing advanced spatial computing, hardware-software integration, and quad-modal sensor fusion products and services. These Terms will apply to your use of such future products and services, in addition to any specific terms, licenses, or agreements provided with those products or services.

- **Beta Programs:** If you participate in any beta testing or early access programs for our future products, you agree to be bound by additional terms and confidentiality obligations specific to those programs.
- **Data Collection:** Our future products may involve the collection of spatial data, telemetry data, and potentially biometric information through advanced sensors. Your use of these products will be subject to our Privacy Policy, which details our data collection, use, and protection practices [1](#) [2](#) .

4. Disclaimers

- **"AS IS" Basis:** Your use of the Site is at your sole risk. The Site is provided on an "AS IS" and "AS AVAILABLE" basis. The Site is provided without warranties of any kind, whether express or implied, including, but not limited to, implied warranties of merchantability, fitness for a particular purpose, non-infringement, or course of performance.
- **Accuracy of Information:** While we strive to provide accurate information on the Site, we do not warrant the completeness, reliability, or accuracy of this information. Any reliance you place on such information is therefore strictly at your own risk.
- **Forward-Looking Statements:** The Site may contain forward-looking statements regarding our future products, services, and business plans. These statements are based on current expectations and assumptions and are subject to risks and uncertainties that may cause actual results to differ materially.

5. Limitation of Liability

In no event shall KINEVATE, nor its directors, employees, partners, agents, suppliers, or affiliates, be liable for any indirect, incidental, special, consequential, or punitive damages, including without limitation, loss of profits, data, use, goodwill, or other intangible losses,

resulting from (i) your access to or use of or inability to access or use the Site; (ii) any conduct or content of any third party on the Site; (iii) any content obtained from the Site; and (iv) unauthorized access, use, or alteration of your transmissions or content, whether based on warranty, contract, tort (including negligence), or any other legal theory, whether or not we have been informed of the possibility of such damage, and even if a remedy set forth herein is found to have failed of its essential purpose.

6. Indemnification

You agree to defend, indemnify, and hold harmless KINEVATE and its licensee and licensors, and their employees, contractors, agents, officers, and directors, from and against any and all claims, damages, obligations, losses, liabilities, costs or debt, and expenses (including but not limited to attorney's fees), resulting from or arising out of a) your use and access of the Site, by you or any person using your account and password; or b) a breach of these Terms.

7. Governing Law and Jurisdiction

These Terms shall be governed and construed in accordance with the laws of the State of Indiana, United States, without regard to its conflict of law provisions. Our failure to enforce any right or provision of these Terms will not be considered a waiver of those rights. If any provision of these Terms is held to be invalid or unenforceable by a court, the remaining provisions of these Terms will remain in effect. These Terms constitute the entire agreement between us regarding our Site, and supersede and replace any prior agreements we might have between us regarding the Site.

8. Changes to These Terms

We reserve the right, at our sole discretion, to modify or replace these Terms at any time. If a revision is material, we will try to provide at least 30 days' notice prior to any new terms taking effect. What constitutes a material change will be determined at our sole discretion. By continuing to access or use our Site after those revisions become effective, you agree to be bound by the revised terms. If you do not agree to the new terms, please stop using the Site.

9. Contact Us

If you have any questions about these Terms, please contact us at:

KINEVATE SPATIALYST INC.

[Insert Company Address Here]

[Insert Contact Email Here]

References

[1] Indiana Code Article 24-15, Consumer Data Protection. Available at:

[2] Illinois Biometric Information Privacy Act (740 ILCS 14/15). Available at:

[3] USPTO issues inventorship guidance and examples for AI-assisted inventions. Available at:

[4] Copyright and Artificial Intelligence | U.S. Copyright Office. Available at: